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IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN MARIANA ISLANDS

FOR THE NORTHERN MARIANA ISLANDS

IMPERIAL PACIFIC INTERNATIONAL (CNMI) LLC, Plaintiff, vs. COMMONWEALTH OF THE NORTHERN MARIANA ISLANDS, the COMMONWEALTH CASINO COMMISSION, ARNOLD PALACIOS, GOVERNOR OF CNMI, in his official and personal capacities, et. al., Defendants.	CIVIL CASE NO. 1:24-CV-0001 **DEFENDANT COMMONWEALTH OF THE NORTHERN MARIANA ISLANDS MEMORANDUM IN SUPPORT OF ITS MOTION TO DISMISS PLAINTIFF'S SECOND AMENDED COMPLAINT PURSUANT TO FEDERAL RULE OF CIVIL PROCEDURE 12(b)(1) and (6)** **Hearing Date:** **Hearing Time:** **Judge: Hon. Judge David Carter**

Defendant Commonwealth of the Northern Mariana Islands, respectfully submits this memorandum in support of Defendant's motion to dismiss Plaintiff's Second Amended Complaint ("SAC") pursuant to ~~Federal Rules of Civil Procedure 8(a), 17(b), 12~~(b)(1) and 12(b)(6).

Defendant Commonwealth of the Northern Mariana Islands, respectfully submits this memorandum in support of Defendant's motion to dismiss Plaintiff's Second Amended Complaint ("SAC") pursuant to Federal Rules of Civil Procedure 8(a), 17(b), 12(b)(1) and 12(b)(6).

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TABLE OF CONTENTS

I. BACKGROUND 4
II. FACTS 7
III. LEGAL STANDARD 7
IV. ARGUMENT 9
1. PLAINTIFF, BEST SUNSHINE INTERNATIONAL LTD, IS NO LONGER AN ENTITY AND LACKS CAPACITY TO SUE. 9
2. PLAINTIFF MAKES NO ALLEGATIONS AGAINST THE COMMONWEALTH PERTAINING TO THEIR CAUSES OF ACTION. 10
3. THE ISSUES ARE NOT RIPE FOR JUDICIAL REVIEW. 11
4. RES JUDICATA BARS PLAINTIFF'S SUIT. 12
a. *There is an identity of claims.* 15
b. *There has been a final judgment on the merits.* 16
c. *There is identity or privity between the parties.* 16
5. THE COMMONWEALTH ENJOYS SOVEREIGN IMMUNITY FROM SUITS IN FEDERAL COURT. 17
6. THE CCC SHOULD BE DISMISSED AS IT IS NOT A SUE OR BE SUED ENTITY. 18
V. CONCLUSION 19

TABLE OF AUTHORITIES

Cases

Alden v. Maine,
527 U.S. 706 (1999) 17, 18
Ashcroft v. Iqbal,
556 U.S. 662 (2009) 7, 8, 10
Bell Atlantic Corp. v. Twombly,
550 U.S. 544 (2007) 7, 8, 10
Bonnichsen v. U.S. Dept. of the Army,
969 F.Supp. 614 (D. Or. 1997) 12
Brown v. Felsen,
442 U.S. 127 (1979) 12, 13
Chao v. A–One Med. Servs., Inc.,
346 F.3d 908 (9th Cir. 2003) 13
Commonwealth Casino Comm'n v. Imperial Pac. Int'l,
2023 MP 8 ..... 5, 6, 14, 16
Constantini v. Trans World Airlines,
681 F.2d 1199 (9th Cir. 1982) 15
Davis v. Commonwealth Election Com'n,
990 F.Supp.2d 1089 (D. N. Mar. I. June 2012) 11

TABLE OF AUTHORITIES

Cases — **Page(s)**

Fleming v. Department of Public Safety, 837 F.2d 401 (9th Cir. 1988) 17
In re Schimmels, 127 F.3d 875 (9th Cir. 1997) 16
Levin Metals Corp.v. Parr-Richmond Terminal Co., 817 F.2d 1448 (9th Cir. 1897) 9
Lucky Brand Dungarees, Inc. v. Marcel Fashions Grp., Inc., 140 S. Ct. 1589, 206 L. Ed. 2d 893 (2020) 13
Manila v. CNMI Department of Corrections, 2019 WL 324424 (D. N. Mar. I. January 24, 2019) 17, 18
Marrese v. Am. Acad. Of Orthopaedic Surgeons, 470 U.S. 373 (1985) 13
McKart v. United States, 395 U.S. 185, 89 S.Ct. 1657, 23 L.Ed.2d 194 (1969) 12
Migra v. Warren City Sch. Dist. Bd. of Educ, 465 U.S. 75 (1984) 13
Mpoyo v. Litton Electro-Optical Sys., 430 F.3d 985 (9th Cir. 2005) 13
Norita K. Commonwealth of the Northern Mariana Islands Department of Public Safety, No. 18-CV-00022, 2019 WL 150875 (D. N. Mar. I. Jan. 10, 2019) 16, 18
Owens v. Kaiser Found. Health Plan, Inc., 244 F.3d 708 (9th Cir. 2001) 13
Pistor v. Garcia, 791 F.3d 1104 (9th Cir. 2015) 8
Piteg v. Piteg, 2000 MP 3 13
Ramirez v. County of San Bernadino, 806 F.3d 1002 (9th Cir. 2015) 7
Ramsey v. Muna, 849 F.3d 858 (9th Cir. 2017) 17
Santos v. Santos, 4 NMI 206 (1994) 13
Scott M. Kuhlmann, 746 F.2d 1377 (9th Cir. 1984) 7, 8
Sofamor Danek Gorup, Inc. v. Brown, 124 F.3d 1179 (9th Cir. 1997) 10
Syverson v. International Business Machines Corp., 472 F.3d 1072 (9th Cir. 2007) 15
Texas v. United States, 523 U.S. 296 (1998) 11
Torres v. Manibusan, 2018 MP 4 19
Western Radio Servs. Co. v. Glickman, 123 F.3d 1189 (9th Cir. 1997) 13

Rules

Fed. R. Civ. P. 12(b)(1) 8
Fed. R. Civ. P. 12(b)(6) 8
Fed. R. Civ. P. 17(b)(2) 7, 9
Fed. R. Civ. P. 8(a)(2) 7
NMI R. Civ. P. 17(b)(2) 13

Other Authorities

BVI Business Companies Act, §§ 213(1)(a)(i), 215(1) 9
D.N.M. Local Rule, LR 5.2(b) 8

Statutes

1 CMC § 102 10
1 CMC § 8315(d) 18
1 CMC § 9112 12
4 CMC § 2306 4
4 CMC § 2309(a) 14, 18
4 CMC § 2313(b) 12
4 CMC § 2314 18
4 CMC § 2314(h) 12
BVI Business Companies Act 9

Rules

Federal Rule of Civil Procedure 8(a)(2) 7
Federal Rule of Civil Procedure 12(b)(1) 8
Federal Rule of Civil Procedure 12(b)(6) 8
Federal Rule of Civil Procedure 17(b)(2) 7, 9, 15

Other Authorities

6 C. Wright & A. Miller, *Federal Practice and Procedure* § 1563 (1971) 9
NMI Const. Art. III, § 15 11

I. Background

1. The 2020 Enforcement Actions

In 2020, the CCC initiated five enforcement actions against Plaintiff:

(a) Enforcement Action 2020-001, alleging that Plaintiff violated the Casino License Agreement by failing to pay the 2018 and 2019 Community Benefit Fund contributions.

(b) Enforcement Action 2020-002, alleging that Plaintiff failed to pay the Annual License Fee due August 12, 2020 in violation of 4 CMC § 2306(b) and CCC regulations (§§ 175-10.1-610(b) and 175-10.1-1805(b)(15).

(c) Enforcement Action 2020-003, alleging that Plaintiff failed to comply with Commission Order 2020-003 by failing to maintain the required cash or cash equivalents in a CNMI or United States bank.

(d) Enforcement Action 2020-004, alleging that Plaintiff violated Commission Order 2020-004 by failing to pay accounts payable that were over 89 days old.

(e) Enforcement Action 2020-005, alleging Plaintiff violated 4 CMC § 2309 and § 175-10.1-1225 by failing to pay the Casino Regulatory Fee due by October 1, 2020.

See ECF No. 56 at 8-11; See also ECF No. 56-3. Enforcement Actions 2020-001 and 2020-002 were consolidated into Enforcement Action 2020-001. See ECF 56-3 (noting consolidation). Enforcement Actions 2020-003, 2020-004, and 2020-005 were consolidated into Enforcement Action 2020-003. ECF 56-3 (noting consolidation).

2. The 2021 Evidentiary Hearings

On February 25, 2021, the CCC conducted evidentiary hearings on Enforcement Action 2020-001 (consolidated). Enforcement Action 2020-001 alleged Plaintiff failed to pay the required 2018 and 2019 Casino License Agreement extended the payment dates to 2025. As to Enforcement Action 002, Plaintiff raise force majeure as a defense. ECF No. 56-3.

"On March 2, 2021, CCC conducted an evidentiary hearing for Complaints 003, 004, and 005. IPI

accordance with law and unwarranted by the facts." *Id.*; *See also* ECF No. 3-3 ("IPI appealed CCC's order to the Superior Court, arguing that COVID-19 and other factors like Super Typhoon Yutu and changes in federal immigration law constituted force majeure events that excused all its performance obligations." Additionally, IPI claimed that CCC violated its due process rights by discussing IPI's parent company's annual report at the April 2021 meeting. IPI asserted that CCC improperly considered evidence outside the record, leading it to decide against IPI's force majeure defense."). The Superior Court affirmed the Order, finding no due process violation and holding that it "was not arbitrary or capricious." ECF No. 3-3 at 5. The court did not "decide the question of force majeure." ECF No. 3-3 at 5. Instead, the court held that while Plaintiff raised the force majeure defense for Enforcement Actions 001 and 002, it did not raise the defense "or any other defense" as to Enforcement Actions 003, 004, and 005. ECF No. 3-3 at 5. The court thus reasoned that the CCC "had properly suspended" Plaintiff's license. ECF No. 3-3 at 5. The court further found no due process violation and held that CCC's order was not arbitrary or capricious." ECF No. 3-3 at 5. On April 11, 2022, Plaintiff appealed the Superior Court's order to the NMI Supreme Court. ECF No. 56 ¶ 47.

On appeal, Plaintiff argued that the lower court erred by "failing to address force majeure, asserting that COVID-19 and other occurrences are force majeure events excusing performance in all five complaints." ECF No. 3-3 at 5; *See also* ECF No. 1 at 6. Plaintiff also argued that "Amendment No. 9 constitutes a deferment of its obligations to pay the Community Benefit Funds." ECF No. 3-3 at 5. Plaintiff also argued that it "suffered a due process violation such that "all sanctions" should be set aside. ECF No. 3-3 at 5; *See also* ECF No. 1 at 6. "On August 25, 2023, the NMI Supreme Court affirmed the trial court's ruling in part and reversed in part and asked CCC to 'decide on a reasonable deadline for IPI to pay' the annual license fees for 2020 and the following years." ECF No. 56 ¶ 47.

Notably, the NMI Supreme Court found that IPI did not raise the defense of force majeure for Complaints 003-005 and conceded the violations. The Court further found that IPI's change in tactics on appeal was barred by numerous procedural rules and hurdles such as failure to raise the issue before the agency and judicial estoppel. *CCC v. IPI*, 2023 MP 8 ¶¶ 56-62.

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II. Facts

The Commonwealth raises no facts in this motion to dismiss because for purposes of res judicata, a

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motion to dismiss is only appropriate if the defense raises no disputed issues of fact. See *Scott v. Kuhlmann*, 746

5. Recent Developments

The CCC conducted a revocation hearing, and Plaintiff filed its Original Complaint in this action and in 1:24-cv-0002 alleging various deficiencies and allegations. This is Plaintiff's Second Amendment to their original Complaint. Procedurally, this mooted the all prior Motions to Dismiss that was directed at the prior Complaints. *See Ramirez v. County of San Bernadino*, 806 F.3d 1002, 1008 (9th Cir. 2015) ("Because Defendants' motion to dismiss targeted Plaintiff's First Amended Complaint, which was no longer in effect, we conclude the motion to dismiss should have been deemed moot…" Thus, Defendant, the Commonwealth now files this Motion to Dismiss that is directed towards the Second Amended Complaint.

II. Facts

The Commonwealth raises no facts in this motion to dismiss because for purposes of res judicata, a motion to dismiss is only appropriate if the defense raises no disputed issues of fact. *See Scott v. Kuhlmann*, 746 F.2d 1377, 1378 (9th Cir. 1984). However, while the Commonwealth raises no disputed facts here, it reserves its right in any future proceedings in this case to contest the issues of fact as raised by Plaintiff.

III. Legal Standard

Party Standard

Federal Rule of Civil Procedure 17(b)(2) reads, "[c]apacity to sue…is determined as follows: (2) for a corporation, by the law under which it was organized." If a company lacks the capacity to sue, it is axiomatic that it cannot bring a suit.

Pleading Standard

A complaint must state a "plausible claim for relief" to "survive[] a motion to dismiss." *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009). "A claim has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged." *Id.* "The plausibility standard is not akin to a 'probability requirement,' but it asks for more than a sheer possibility that a defendant has acted unlawfully." *Id.* While "detailed factual allegations" are not required under the rule, it "demands more than an unadorned, the-defendant-unlawfully-harmed-me accusation." *Ashcroft v. Iqbal*, 556 U.S. 662, 677–78 (2009) (citing *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 555 (2007)). The factual allegations must be sufficient "to raise a right to relief above the speculative level." *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 555 (2007). It is insufficient for a pleading to offer "labels and conclusions" or "a formulaic recitation of the elements of a cause of action." *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (citing *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 555 (2007). 550

IV. Argument[1]

1. Plaintiff, Best Sunshine International Ltd, is No Longer an Entity and Lacks Capacity to Sue.

One of the Plaintiffs that is alleged to bring the SAC is Best Sunshine International Ltd. (BVI) ("Best Sunshine"). Best Sunshine is alleged to be "a corporation organized under the laws of the British Virgin Islands, with its principal place of business at P.O. Box 95, Offshore Incorporation Centre, Road Town, Tortola, British Virgin Islands." SAC ¶ 5 (ECF 56). Further, Best Sunshine is the sole member of Plaintiff IPI. SAC ¶ 4 (ECF 56). Best Sunshine, however, has been dissolved since April 7, 2023, and cannot be a party to this proceeding. *See* Exhibit 1 (Dissolution of Best Sunshine from BVI Registrar of Corporations).

Federal Rule of Civil Procedure 17(b)(2) reads, "[c]apacity to sue or be sued is determined as follows: . . . (2) for a corporation, by the law under which it was organized." Best Sunshine was organized in the British Virgin Islands, and thus that law would control. SAC ¶ 5 (ECF 56); *See also Levin Metals Corp.v. Parr-Richmond Terminal Co.*, 817 F.2d 1448, 1451 (9th Cir. 1897) (finding that Rule 17(b) requires the application of the law under which the corporation was organized and finding that Rule 17(b) applies to dissolved corporations) (citing 6 C. Wright & A. Miller, *Federal Practice and Procedure* § 1563 (1971)).

Under the British Virgin Islands Business Companies Act of 2014 (Revised 2020), "[t]he Registrar may strike the name of a company off the Register if the company does not have a registered agent." BVI Business Companies Act, Division 3—Striking Off and Dissolution § 213(1)(a)(i). Best Sunshine has no registered agent as the "Agent Resigned from Company" and thus, the status of Best Sunshine is that it has been dissolved as of April 7, 2023. *See* Exhibit 1. As a dissolved corporation, "the company and the directors, members and any liquidator or receiver thereof, may not—(a) commence legal proceedings, carry on any business or in any way deal with the assets of the company; (b) defend any legal proceedings; make any claim or claim any right for, or in the name of, the company; or (c) act in any way with respect to the affairs of the company." BVI Business Companies Act, Division 3 § 215 (1). Best Sunshine ceased to exist on April 7, 2023, thus under the laws of the British Virgin Islands, it could not commence legal

[1] Pursuant to Local Rule 5.2(b), attached to this memorandum is Exhibit 1 containing all authorities relied on by the Commonwealth which are not available on LexisNexis or Westlaw.

IV. Argument[1]

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Federal Rule of Civil Procedure 17(b)(2) reads, "[c]apacity to sue…is determined as follows… (2) for a corporation, by the law under which it was organized." Best Sunshine was organized in the British Virgin Islands, and thus that law would control. SAC ¶ 5 (ECF 56). *See also Levin Metals Corp. v. Parr-Richmond Terminal Co.*, 817 F.2d 1448, 1451 (9th Cir. 1897) (finding that Rule 17(b) requires the application of the law under which the corporation was organized and finding that Rule 17(b) applies to dissolved corporations) (citing 6 C. Wright & A. Miller, *Federal Practice and Procedure* § 1563 (1971)).

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V. Conclusion

For the foregoing reasons, Defendants respectfully move to dismiss this suit pursuant to Federal Rule 12(b)(6) because Best Sunshine and its claims must be dismissed.

Date: August 13, 2024

Respectfully submitted,

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The Original Complaint was filed on February 23, 2024; the SAC was filed on July 23, 2024.